

Vacant Land Contract

1. **Sale and Purchase ("Contract"):** _____ ("Seller")
and _____ Adams Homes of Northwest Florida, Inc. _____ ("Buyer")
(the "parties") agree to sell and buy on the terms and conditions specified below the property ("Property")
described as:

Address: See Exhibit "A"

Legal Description: See Exhibit "A"

SEC ____/TWP ____/RNG ____ of _____ County, Florida. Real Property ID No.: Exhibit "A"
including all improvements existing on the Property and the following additional property: _____

2. **Purchase Price:** (U.S. currency) _____ \$ _____

All deposits will be made payable to "Escrow Agent" named below and held in escrow by:

Escrow Agent's Name: EMMANUEL SHEPPARD & CONDON, PA.

Escrow Agent's Contact Person: John Monroe

Escrow Agent's Address: 30 S. SPRING STREET, PENSACOLA, FLORIDA, 32502

Escrow Agent's Phone: (850) 433-6581

Escrow Agent's Email: jwm@esclaw.com

(a) Initial deposit (\$0 if left blank) (Check if applicable)

☐ accompanies offer

☒ will be delivered to Escrow Agent within 10 days (3 days if left blank)
after Effective Date _____

\$ 100

~~(b) Additional deposit will be delivered to Escrow Agent (Check if applicable)~~

~~☐ within _____ days (10 days if left blank) after Effective Date~~

~~☐ within _____ days (3 days if left blank) after expiration of Due Diligence Period _____~~

~~(c) Total Financing (see Paragraph 6) (express as a dollar amount or percentage) _____~~

~~(d) Other: _____~~

(e) Balance to close (not including Buyer's closing costs, prepaid items, and prorations)

to be paid at closing by wire transfer or other Collected funds _____

\$ _____

~~(f) ☐ (Complete only if purchase price will be determined based on a per unit cost instead of a fixed price.) The unit used to determine the purchase price is ☐ lot ☐ acre ☐ square foot ☐ other (specify): _____

_____~~

3. **Time for Acceptance; Effective Date:** Unless this offer is signed by Seller and Buyer and an executed copy delivered to all parties on or before _____, this offer will be withdrawn and Buyer's deposit, if any, will be returned. The time for acceptance of any counter-offer will be 3 days after the date the counter-offer is delivered. The "Effective Date" of this Contract is the date on which the last one of the Seller and Buyer has signed or initialed and delivered this offer or the final counter-offer.

4. **Closing Date:** This transaction will close on _____ or before the date that is 10 business days from expiration of the Due Diligence Period ("Closing Date"), unless specifically extended by other provisions of this Contract. The Closing Date will prevail over all other time periods including, but not limited to, Financing and Due Diligence periods. However, if the Closing Date occurs on a Saturday, Sunday, or national legal holiday, it will extend to 5:00 p.m. (where the Property is located) of the next business day. In the event insurance underwriting is suspended on Closing Date and Buyer is unable to obtain property insurance, Buyer may postpone closing for up to 5 days after the insurance underwriting suspension is lifted. If this transaction does not close for any reason, Buyer will immediately return all Seller provided documents and other items.

5. ~~Extension of Closing Date. If Paragraph 6(b) is checked and Closing Funds from Buyer's lender(s) are not available on Closing Date due to Consumer Financial Protection Bureau Closing Disclosure delivery requirements~~

Buyer (____) (____) and Seller (____) (____) acknowledge receipt of a copy of this page, which is 1 of 8 pages.

~~("CFPB Requirements"), if applicable, then Closing Date shall be extended for each period necessary to satisfy CFPB Requirements, provided such period shall not exceed 10 days.~~

6. Financing: (Check as applicable)

(a) ☒ Buyer will pay cash for the Property with no financing contingency.

~~(b) ☐ This Contract is contingent on Buyer qualifying for and obtaining the commitment(s) or approval(s) specified below ("Financing") within _____ days after Effective Date (Closing Date or 30 days after Effective Date, whichever occurs first, if left blank) ("Financing Period"). Buyer will apply for Financing within _____ days after Effective Date (5 days if left blank) and will timely provide any and all credit, employment, financial, and other information required by the lender. If Buyer, after using diligence and good faith, cannot obtain the Financing within the Financing Period, either party may terminate this Contract and Buyer's deposit(s) will be returned.~~

~~(1) ☐ New Financing: Buyer will secure a commitment for new third party financing for \$ _____ or _____ % of the purchase price at (Check one) ☐ a fixed rate not exceeding _____ % ☐ an adjustable interest rate not exceeding _____ % at origination (a fixed rate at the prevailing interest rate based on Buyer's creditworthiness if neither choice is selected). Buyer will keep Seller and Broker fully informed of the loan application status and progress and authorizes the lender or mortgage broker to disclose all such information to Seller and Broker.~~

~~(2) ☐ Seller Financing: Buyer will execute a ☐ first ☐ second purchase money note and mortgage to Seller in the amount of \$ _____, bearing annual interest at _____ % and payable as follows:~~

~~The mortgage, note, and any security agreement will be in a form acceptable to Seller and will follow forms generally accepted in the county where the Property is located; will provide for a late payment fee and acceleration at the mortgagee's option if Buyer defaults; will give Buyer the right to prepay without penalty all or part of the principal at any time(s) with interest only to date of payment; will be due on conveyance or sale; will provide for release of contiguous parcels, if applicable; and will require Buyer to keep liability insurance on the Property, with Seller as additional named insured. Buyer authorizes Seller to obtain credit, employment, and other necessary information to determine creditworthiness for the financing. Seller will, within 10 days after Effective Date, give Buyer written notice of whether or not Seller will make the loan.~~

~~(3) ☐ Mortgage Assumption: Buyer will take title subject to and assume and pay existing first mortgage to~~

~~L# _____ in the approximate amount of \$ _____ currently payable at \$ _____ per month, including principal, interest, ☐ taxes and insurance, and having a ☐ fixed ☐ other (describe) _____ interest rate of _____ % which ☐ will ☐ will not accelerate upon assumption. Any variance in the mortgage will be adjusted in the balance due at closing with no adjustment to purchase price. Buyer will purchase Seller's escrow account dollar for dollar. If the interest rate upon transfer exceeds _____ % or the assumption/transfer fee exceeds \$ _____, either party may elect to pay the excess, failing which this Contract will terminate, and Buyer's deposit(s) will be returned. If the lender disapproves Buyer, this Contract will terminate, and Buyer's deposit(s) will be returned.~~

7. Assignability: (Check one) Buyer ☐ may assign and thereby be released from any further liability under this Contract, ☐ may assign but not be released from liability under this Contract, or ☒ may not assign this Contract.

8. Title: Seller has the legal capacity to and will convey marketable title to the Property by ☒ statutory warranty deed ☐ special warranty deed ☐ other (specify) _____, free of liens, easements, and encumbrances of record or known to Seller, ~~but subject to property taxes for the year of closing, covenants, restrictions, and public utility easements of record; existing zoning and governmental regulations; and (list any other matters to which title will be subject)~~ _____,

provided there exists at closing no violation of the foregoing.

(a) **Title Evidence:** The party who pays for the owner's title insurance policy will select the closing agent and pay for the title search, including tax and lien search (including municipal lien search) if performed, and all other fees charged by closing agent. Seller will deliver to Buyer, at

(Check one) ☐ Seller's ☒ Buyer's expense and

(Check one) ☐ within _____ days after Effective Date ☒ at least 2 days before Closing Date,

(Check one)

(1) ☒ a title insurance commitment by a Florida licensed title insurer setting forth those matters to be discharged by Seller at or before closing and, upon Buyer recording the deed, an owner's policy in the

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amount of the purchase price for fee simple title subject only to the exceptions stated above. If **Buyer** is paying for the owner's title insurance policy and **Seller** has an owner's policy, **Seller** will deliver a copy to **Buyer** within 15 days after Effective Date.

~~(2) ☐ an abstract of title, prepared or brought current by an existing abstract firm or certified as correct by an existing firm. However, if such an abstract is not available to **Seller**, then a prior owner's title policy acceptable to the proposed insurer as a base for reissuance of coverage may be used. The prior policy will include copies of all policy exceptions and an update in a format acceptable to **Buyer** from the policy effective date and certified to **Buyer** or **Buyer's** closing agent together with copies of all documents recited in the prior policy and in the update. If such an abstract or prior policy is not available to **Seller**, then (1) above will be the title evidence.~~

(b) **Title Examination:** After receipt of the title evidence, **Buyer** will, within ^{1 day prior to closing date} ~~40 days if left blank~~ but ~~no later than Closing Date~~, deliver written notice to **Seller** of title defects. Title will be deemed acceptable to **Buyer** if (i) **Buyer** fails to deliver proper notice of defects or (ii) **Buyer** delivers proper written notice and **Seller** cures the defects within 30 days (30 days if left blank) ("Cure Period") after receipt of the notice. If the defects are cured within the Cure Period, closing will occur within 10 days after receipt by **Buyer** of notice of such cure. **Seller** may elect not to cure defects if **Seller** reasonably believes any defect cannot be cured within the Cure Period. If the defects are not cured within the Cure Period, **Buyer** will have 10 days after receipt of notice of **Seller's** inability to cure the defects to elect whether to terminate this Contract or accept title subject to existing defects and close the transaction without reduction in purchase price.

(c) **Survey:** **Buyer** may, at **Buyer's** expense, have the Property surveyed and must deliver written notice to **Seller**, within 5 days after receiving survey but not later than 5 days before Closing Date, of any encroachments on the Property, encroachments by the Property's improvements on other lands, or deed restriction or zoning violations. Any such encroachment or violation will be treated in the same manner as a title defect and **Seller's** and **Buyer's** obligations will be determined in accordance with Paragraph 8(b).

(d) **Ingress and Egress:** **Seller** warrants that the Property presently has ingress and egress.

9. **Property Condition:** **Seller** will deliver the Property to **Buyer** at closing in its present "as is" condition, with conditions resulting from **Buyer's** Inspections and casualty damage, if any, excepted. **Seller** will not engage in or permit any activity that would materially alter the Property's condition without the **Buyer's** prior written consent.

(a) **Inspections: (Check (1) or (2))**

(1) ☒ **Due Diligence Period:** **Buyer** will, at **Buyer's** expense and within 45 days (30 days if left blank) ("Due Diligence Period") after Effective Date and in **Buyer's** sole and absolute discretion, determine whether the Property is suitable for **Buyer's** intended use. During the Due Diligence Period, **Buyer** may conduct a Phase 1 environmental assessment and any other tests, analyses, surveys, and investigations ("Inspections") that **Buyer** deems necessary to determine to **Buyer's** satisfaction the Property's engineering, architectural, and environmental properties; zoning and zoning restrictions; subdivision statutes; soil and grade; availability of access to public roads, water, and other utilities; consistency with local, state, and regional growth management plans; availability of permits, government approvals, and licenses; and other inspections that **Buyer** deems appropriate. If the Property must be rezoned, **Buyer** will obtain the rezoning from the appropriate government agencies. **Seller** will sign all documents **Buyer** is required to file in connection with development or rezoning approvals. **Seller** gives **Buyer**, its agents, contractors, and assigns, the right to enter the Property at any time during the Due Diligence Period for the purpose of conducting Inspections, provided, however, that **Buyer**, its agents, contractors, and assigns enter the Property and conduct Inspections at their own risk. **Buyer** will indemnify and hold **Seller** harmless from losses, damages, costs, claims, and expenses of any nature, including attorneys' fees, expenses, and liability incurred in application for rezoning or related proceedings, and from liability to any person, arising from the conduct of any and all Inspections or any work authorized by **Buyer**. **Buyer** will not engage in any activity that could result in a construction lien being filed against the Property without **Seller's** prior written consent. If this transaction does not close, **Buyer** will, at **Buyer's** expense, (i) repair all damages to the Property resulting from the Inspections and return the Property to the condition it was in before conducting the Inspections and (ii) release to **Seller** all reports and other work generated as a result of the Inspections.

Before expiration of the Due Diligence Period, **Buyer** must deliver written notice to **Seller** of **Buyer's** determination of whether or not the Property is acceptable. **Buyer's** failure to comply with this notice requirement will constitute acceptance of the Property as suitable for **Buyer's** intended use in its "as is" condition. If the Property is unacceptable to **Buyer** and written notice of this fact is timely delivered to **Seller**, this Contract will be deemed terminated, and **Buyer's** deposit(s) will be returned.

Buyer  () and Seller () () acknowledge receipt of a copy of this page, which is 3 of 8 pages.

(2) ~~☐ No Due Diligence Period: Buyer is satisfied that the Property is suitable for Buyer's purposes, including being satisfied that either public sewerage and water are available to the Property or the Property will be approved for the installation of a well and/or private sewerage disposal system and that existing zoning and other pertinent regulations and restrictions, such as subdivision or deed restrictions, concurrency, growth management, and environmental conditions, are acceptable to Buyer. This Contract is not contingent on Buyer conducting any further investigation.~~

- (b) **Government Regulations:** Changes in government regulations and levels of service which affect Buyer's intended use of the Property will not be grounds for terminating this Contract if the Due Diligence Period has expired or if Paragraph 9(a)(2) is selected.
- (c) **Flood Zone:** Buyer is advised to verify by survey, with the lender, and with appropriate government agencies which flood zone the Property is in, whether flood insurance is required, and what restrictions apply to improving the Property and rebuilding in the event of casualty.
- (d) **Coastal Construction Control Line ("CCCL"):** If any part of the Property lies seaward of the CCCL as defined in Section 161.053, Florida Statutes, Seller will provide Buyer with an affidavit or survey as required by law delineating the line's location on the Property, unless Buyer waives this requirement in writing. The Property being purchased may be subject to coastal erosion and to federal, state, or local regulations that govern coastal property, including delineation of the CCCL, rigid coastal protection structures, beach nourishment, and the protection of marine turtles. Additional information can be obtained from the Florida Department of Environmental Protection, including whether there are significant erosion conditions associated with the shore line of the Property being purchased.
- ☐ Buyer waives the right to receive a CCCL affidavit or survey.

10. Closing Procedure; Costs: ~~Closing will take place in the county where the Property is located and may be conducted by mail or electronic means.~~ If title insurance insures Buyer for title defects arising between the title binder effective date and recording of Buyer's deed, closing agent will disburse at closing the net sale proceeds to Seller (in local cashier's check if Seller requests in writing at least 5 days before closing) and brokerage fees to Broker as per Paragraph 21. In addition to other expenses provided in this Contract, Seller and Buyer will pay the costs indicated below.

(a) Seller Costs:

Taxes on deed
Recording fees for documents needed to cure title
Title evidence (if applicable under Paragraph 8)
Estoppel Fee(s)
Other: _____ Seller shall pay at closing \$350 towards the Escrow Agent's Settlement Charge

(b) Buyer Costs:

Taxes and recording fees on notes and mortgages
Recording fees on the deed and financing statements
Loan expenses
Title evidence (if applicable under Paragraph 8)
Lender's title policy at the simultaneous issue rate
Inspections
Survey
Insurance
Other: _____ Buyer shall pay at closing any remaining balance of the Escrow Agent's Settlement Charge

(c) **Prorations:** The following items will be made current and prorated as of the day before Closing Date: real estate taxes (including special benefit tax liens imposed by a CDD), interest, bonds, assessments, leases, and other Property expenses and revenues. If taxes and assessments for the current year cannot be determined, the previous year's rates will be used with adjustment for any exemptions.

(d) **Special Assessment by Public Body:** Regarding special assessments imposed by a public body, Seller will pay (i) the full amount of liens that are certified, confirmed, and ratified before closing and (ii) the amount of the last estimate of the assessment if an improvement is substantially completed as of Effective Date but has not resulted in a lien before closing; and Buyer will pay all other amounts. If special assessments may be paid in installments, ☐ Seller ☒ Buyer (Buyer if left blank) will pay installments due after closing. If Seller is checked, Seller will pay the assessment in full before or at the time of closing. Public body does not include a Homeowners' or Condominium Association.

(e) **PROPERTY TAX DISCLOSURE SUMMARY:** BUYER SHOULD NOT RELY ON THE SELLER'S CURRENT PROPERTY TAXES AS THE AMOUNT OF PROPERTY TAXES THAT BUYER MAY BE OBLIGATED TO PAY IN THE YEAR SUBSEQUENT TO PURCHASE. A CHANGE OF OWNERSHIP OR PROPERTY

Buyer  () and Seller () () acknowledge receipt of a copy of this page, which is 4 of 8 pages.

IMPROVEMENTS TRIGGERS REASSESSMENTS OF THE PROPERTY THAT COULD RESULT IN HIGHER PROPERTY TAXES. IF YOU HAVE ANY QUESTIONS CONCERNING VALUATION, CONTACT THE COUNTY PROPERTY APPRAISER'S OFFICE FOR FURTHER INFORMATION.

(f) **Foreign Investment in Real Property Tax Act ("FIRPTA"):** ~~If Seller is a "foreign person" as defined by FIRPTA, Seller and Buyer will comply with FIRPTA, which may require Seller to provide additional cash at closing.~~

(g) **1031 Exchange:** If either **Seller** or **Buyer** wish to enter into a like-kind exchange (either simultaneously with closing or after) under Section 1031 of the Internal Revenue Code ("Exchange"), the other party will cooperate in all reasonable respects to effectuate the Exchange including executing documents, provided, however, that the cooperating party will incur no liability or cost related to the Exchange and that the closing will not be contingent upon, extended, or delayed by the Exchange.

11. Computation of Time: Calendar days will be used when computing time periods, except time periods of 5 days or less. Time periods of 5 days or less will be computed without including Saturday, Sunday, or national legal holidays specified in 5 U.S.C. 6103(a). Other than time for acceptance and Effective Date as set forth in Paragraph 3, any time periods provided for or dates specified in this Contract, whether preprinted, handwritten, typewritten or inserted herein, which shall end or occur on a Saturday, Sunday, or national legal holiday (see 5 U.S.C. 6103) shall extend until 5:00 p.m. (where the Property is located) of the next business day. **Time is of the essence in this Contract.**

12. Risk of Loss; Eminent Domain: If any portion of the Property is materially damaged by casualty before closing or **Seller** negotiates with a governmental authority to transfer all or part of the Property in lieu of eminent domain proceedings or an eminent domain proceeding is initiated, **Seller** will promptly inform **Buyer**. Either party may terminate this Contract by written notice to the other within 10 days after **Buyer's** receipt of **Seller's** notification, and **Buyer's** deposit(s) will be returned, failing which **Buyer** will close in accordance with this Contract and receive all payments made by the governmental authority or insurance company, if any.

13. Force Majeure: **Seller** or **Buyer** will not be required to perform any obligation under this Contract or be liable to each other for damages so long as the performance or non-performance of the obligation is delayed, caused, or prevented by an act of God or force majeure. An "act of God or force majeure" is defined as hurricanes, earthquakes, floods, fire, unusual transportation delays, wars, insurrections, and any other cause not reasonably within the control of **Seller** or **Buyer** and which by the exercise of due diligence the non-performing party is unable in whole or in part to prevent or overcome. All time periods, including Closing Date, will be extended for the period that the act of God or force majeure is in place. However, in the event that such act of God or force majeure event continues beyond 30 days, either party may terminate this Contract by delivering written notice to the other; and **Buyer's** deposit(s) will be returned.

14. Notices: All notices will be in writing and delivered to the parties and Broker by mail, personal delivery, or electronic means. **Buyer's failure to timely deliver written notice to Seller, when such notice is required by this Contract, regarding any contingency will render that contingency null and void, and this Contract will be construed as if the contingency did not exist. Any notice, document, or item delivered to or received by an attorney or licensee (including a transactions broker) representing a party will be as effective as if delivered to or received by that party.**

15. Complete Agreement; Persons Bound: This Contract is the entire agreement between **Seller** and **Buyer**. **Except for brokerage agreements, no prior or present agreements will bind Seller, Buyer, or Broker unless incorporated into this Contract.** Modifications of this Contract will not be binding unless in writing, signed or initialed, and delivered by the party to be bound. Electronic signatures will be acceptable and binding. This Contract, signatures, initials, documents referenced in this Contract, counterparts, and written modifications communicated electronically or on paper will be acceptable for all purposes, including delivery, and will be binding. Handwritten or typewritten terms inserted in or attached to this Contract prevail over preprinted terms. If any provision of this Contract is or becomes invalid or unenforceable, all remaining provisions will continue to be fully effective. **Seller** and **Buyer** will use diligence and good faith in performing all obligations under this Contract. This Contract will not be recorded in any public record. The terms "**Seller**," "**Buyer**," and "**Broker**" may be singular or plural. This Contract is binding on the heirs, administrators, executors, personal representatives, and assigns, if permitted, of **Seller**, **Buyer**, and Broker.

16. Default and Dispute Resolution: This Contract will be construed under Florida law. This Paragraph will survive closing or termination of this Contract.

(a) **Seller Default:** If **Seller** fails, neglects, or refuses to perform **Seller's** obligations under this Contract, **Buyer** may elect to receive a return of **Buyer's** deposit(s) without thereby waiving any action for damages resulting

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from **Seller's** breach and may seek to recover such damages or seek specific performance. **Seller** will also be liable for the full amount of the brokerage fee.

(b) **Buyer Default:** ~~If Buyer fails, neglects, or refuses to perform Buyer's obligations under this Contract, including payment of deposit(s) within the time(s) specified, Seller may elect to recover and retain the deposit(s), paid and agreed to be paid, for the account of Seller as agreed upon liquidated damages, consideration for execution of this Contract, and in full settlement of any claims, whereupon Seller and Buyer will be relieved from all further obligations under this Contract; or Seller, at Seller's option, may proceed in equity to enforce Seller's rights under this Contract.~~

~~**17. Attorney's Fees, Costs:** In any litigation permitted by this Contract, the prevailing party shall be entitled to recover from the non-prevailing party costs and fees, including reasonable attorney's fees, incurred in conducting the litigation. This Paragraph 17 shall survive Closing or termination of this Contract.~~

18. Escrow Agent; Closing Agent: **Seller** and **Buyer** authorize Escrow Agent and closing agent (collectively "Agent") to receive, deposit, and hold funds and other items in escrow and, subject to Collection, disburse them upon proper authorization and in accordance with Florida law and the terms of this Contract, including disbursing brokerage fees. "Collection" or "Collected" means any checks tendered or received have become actually and finally collected and deposited in the account of Agent. The parties agree that Agent will not be liable to any person for misdelivery of escrowed items to **Seller** or **Buyer**, unless the misdelivery is due to Agent's willful breach of this Contract or gross negligence. If Agent interpleads the subject matter of the escrow, Agent will pay the filing fees and costs from the deposit and will recover reasonable attorneys' fees and costs to be paid from the escrowed funds or equivalent and charged and awarded as court costs in favor of the prevailing party.

19. Professional Advice; Broker Liability: Broker advises **Seller** and **Buyer** to verify all facts and representations that are important to them and to consult an appropriate professional for legal advice (for example, interpreting this Contract, determining the effect of laws on the Property and this transaction, status of title, foreign investor reporting requirements, the effect of property lying partially or totally seaward of the CCCL, etc.) and for tax, property condition, environmental, and other specialized advice. **Buyer** acknowledges that all representations (oral, written, or otherwise) by Broker are based on **Seller** representations or public records. **Buyer agrees to rely solely on Seller, professional inspectors, and government agencies for verification of the Property condition and facts that materially affect Property value.** ~~Seller and Buyer respectively will pay all costs and expenses, including reasonable attorneys' fees at all levels, incurred by Broker and Broker's officers, directors, agents, and employees in connection with or arising from Seller's or Buyer's misstatement or failure to perform contractual obligations. Seller and Buyer hold harmless and release Broker and Broker's officers, directors, agents, and employees from all liability for loss or damage based on (i) Seller's or Buyer's misstatement or failure to perform contractual obligations; (ii) the use or display of listing data by third parties, including, but not limited to, photographs, images, graphics, video recordings, virtual tours, drawings, written descriptions, and remarks related to the Property; (iii) Broker's performance, at Seller's or Buyer's request, of any task beyond the scope of services regulated by Chapter 475, Florida Statutes, as amended, including Broker's referral, recommendation, or retention of any vendor; (iv) products or services provided by any vendor; and (v) expenses incurred by any vendor. Seller and Buyer each assume full responsibility for selecting and compensating their respective vendors.~~ This Paragraph will not relieve Broker of statutory obligations. For purposes of this Paragraph, Broker will be treated as a party to this Contract. This Paragraph will survive closing.

~~**20. Commercial Real Estate Sales Commission Lien Act:** If the Property is commercial real estate as defined by Section 475.701, Florida Statutes, the following disclosure will apply: The Florida Commercial Real Estate Sales Commission Lien Act provides that when a broker has earned a commission by performing licensed services under a brokerage agreement with you, the broker may claim a lien against your net sales proceeds for the broker's commission. The broker's lien rights under the act cannot be waived before the commission is earned.~~

21. Brokers: The licensee(s) and brokerage(s) named below are collectively referred to as "Broker." **Instruction to closing agent:** **Seller** and **Buyer** direct Closing Agent to disburse at Closing the full amount of the brokerage fees as specified in separate brokerage agreements with the parties and cooperative agreements between the Brokers, except to the extent Broker has retained such fees from the escrowed funds. This Paragraph will not be used to modify any offer of compensation made by **Seller** or listing broker to cooperating brokers.

N. Duncan Hudnall/BK 234388

Seller's Sales Associate/License No.

Buyer's Sales Associate/License No.

Buyer () () and Seller () () acknowledge receipt of a copy of this page, which is 6 of 8 pages.

329*		ECLand@AdamsHomes.Com
330	<u>Seller's Sales Associate Email Address</u>	<u>Buyer's Sales Associate Email Address</u>
331		
332*		407-523-0908
333	<u>Seller's Sales Associate Phone Number</u>	<u>Buyer's Sales Associate Phone Number</u>
334		
335*		ADAMS HOMES REALTY, INC.
336	<u>Listing Brokerage</u>	<u>Buyer's Brokerage</u>
337		
338*		100 W. Garden St. 2nd Floor, Pensacola, FL. 32502
339	<u>Listing Brokerage Address</u>	<u>Buyer's Brokerage Address</u>

340 **22. Addenda:** The following additional terms are included in the attached addenda and incorporated into this Contract

341 **(Check if applicable)**

342* ☐ A. Back-up Contract

343* ☐ B. Kick Out Clause

344* ☒ C. Other Addendum for Vacant Land Contract

345* **23. Additional Terms:** _____

346 _____

347 _____

348 _____

349 _____

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361 **COUNTER-OFFER/REJECTION**

362* ☐ Seller counters Buyer's offer (to accept the counter-offer, Buyer must sign or initial the counter-offered terms and

363 deliver a copy of the acceptance to Seller).

364* ☐ Seller rejects Buyer's offer

367 **[The remainder of this page is intentionally left blank.**

368 **This Contract continues with Line 367 on Page 8 of 8.]**

367 This is intended to be a legally binding Contract. If not fully understood, seek the advice of an attorney before
368 signing.

369 **ATTENTION: SELLER AND BUYER**

370 **CONVEYANCES TO FOREIGN BUYERS:** Part III of Chapter 692, Sections 692.201 - 692.205, Florida Statutes, 2023
371 (the "Act"), in part, limits and regulates the sale, purchase and ownership of certain Florida properties by certain buyers
372 who are associated with a "foreign country of concern", namely: the People's Republic of China, the Russian
373 Federation, the Islamic Republic of Iran, the Democratic People's Republic of Korea, the Republic of Cuba, the
374 Venezuelan regime of Nicolás Maduro, or the Syrian Arab Republic. **It is a crime to buy or knowingly sell property**
375 **in violation of the Act.**

376 **At time of purchase, Buyer must provide a signed Affidavit which complies with the requirements of the Act.**
377 **Seller and Buyer are advised to seek legal counsel regarding their respective obligations and liabilities under the Act.**

378
379* **Buyer:** John R Date: _____

380* Print name: Elizabeth Porter Regional Manager

381* **Buyer:** _____ Date: _____

382* Print name: _____

383 **Buyer's address for purpose of notice:**

384* Address: 100 W. Garden St. 2nd Floor, Pensacola, FL. 32502

385* Phone: 850-934-0470 Fax: _____ Email: ECLand@AdamsHomes.Com

386* **Seller:** _____ Date: _____

387* Print name: _____

388* **Seller:** _____ Date: _____

389* Print name: _____

390 **Seller's address for purpose of notice:**

391* Address: _____

392* Phone: _____ Fax: _____ Email: _____

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Buyer (*EP*) () and Seller () () acknowledge receipt of a copy of this page, which is 8 of 8 pages.

ADDENDUM FOR VACANT LAND CONTRACT

THIS ADDENDUM FOR VACANT LAND CONTRACT (this "Addendum"), made and entered into by and between _____ ("Seller"), and ADAMS HOMES OF NORTHWEST FLORIDA, INC., a Florida corporation ("Buyer"), on the date on which the last party signed below. **Seller** and **Buyer** acknowledge and agree that this Addendum is incorporated into the Vacant Land Contract ("Contract").

1. The following language is added after "statutory warranty deed" in paragraph 8, line 95 of the Contract:

*or trustee, personal representative or guardian deed as appropriate to **Seller's** status*

2. The following language is added to the end of paragraph 9(a)(1) of the Contract:

*This Contract is contingent upon **Buyer** obtaining percolation and soil testing and **Buyer's** approval of same within the Due Diligence Period. Notwithstanding the Due Diligence Period, if prior to closing it is discovered the Lot or Lots are affected by any environmental condition, including the presence of protected species on the Lot or Lots in the vicinity of the Lot or Lots, **Buyer** shall have the right to cancel this Contract and receive a full refund of the Escrow Deposit.*

3. The following language is added to paragraph 10, line 186 of the Contract:

Closing will take place at the Escrow Agent's address and may be conducted by mail or electronic means.

4. The following language is added to paragraph 10(f) of the Contract:

*If **Seller** is a "foreign person" as defined by the Internal Revenue Code, **Buyer** generally is required to withhold up to 15% of the gross sales price from **Seller** at closing and to pay the withheld amount over to the Internal Revenue Service ("IRS") unless an applicable exemption from withholding or a limitation on the amount on the amount to be withheld is available and supplied by **Seller**. To the extent that the cash to be paid over to **Seller** at closing is insufficient to cover the **Buyer's** withholding obligation, **Seller** shall provide to **Buyer** at closing cash equal to such excess for purposes of making such withholding payment. If **Seller's** federal income tax on the gain is less than the applicable withholding amount, **Seller** may make advance application to the IRS for reduced withholding and, if granted, **Buyer** shall withhold only the authorized reduced amount. If such ruling has not been received by closing, the parties at closing may enter into an escrow agreement reasonably satisfactory to **Buyer** and **Seller** (**Seller** to pay all attorney's fees for preparation of the escrow agreement) pending receipt of ruling, provided that at closing **Seller** shall have the obligation to provide the escrow agent from the closing proceeds (or from **Seller's** other resources if necessary) cash equal to the maximum required*

X:  _____

X: _____

withholding, with any excess withholding being refundable to **Seller** upon receipt of a favorable ruling from the IRS. Absent such escrow agreement, the escrow agent shall remit the entire withholding amount to IRS as required by law. **Buyer** and **Seller** understand that the IRS requires **Buyer** and **Seller** to have a U.S. federal taxpayer identification number ("TIN") (or social security number, if an individual) ("SSN") and to supply that number on the foregoing forms. A foreign individual may acquire an International Taxpayer Identification Number (or social security number, if an individual) for this purpose. Since it may take several weeks to receive the number after application and the IRS will not process these forms without the actual number, a party lacking a TIN or SSN is advised to apply immediately. In the event that **Seller** resides outside of the United States of America at the time of closing and execution of **Seller's** closing documents, as a condition of closing and **Buyer's** obligation to close, **Seller** must have **Seller's** documents signed, witnessed and notarized at an American Consulate, or, if **Seller** is serving in or with the Armed Services of the United States, execution may be before a military notary or officer properly authorized to take acknowledgments by the laws of the United States of America.

5. The following language is added as paragraph 10(h) of the Contract:

*(h) Estoppel Letter(s)/Municipal Lien(s): If applicable, **Seller** shall be responsible for 100% of the cost of any estoppel letter/certificate, municipal lien search fees, and/or transfer fees from any homeowners' association associated with the Property and required by any title company, Closing Attorney, lending institution, etc., which shall be paid by **Seller** prior to closing. However, in the event **Seller** fails to comply with these obligations, any subject fees shall be deducted from **Seller's** proceeds at closing.*

6. The following language replaces the language to paragraph 16(b) of the Contract:

*If **Buyer** fails to perform this Contract within the time specified, including timely payment of all deposits, **Seller** may as its sole and exclusive remedy choose to terminate this Contract and retain and collect all deposits paid and agreed to be paid as liquidated damages. More specifically, **Seller** shall be entitled to recover from **Buyer** the sum of any Escrow Deposit remaining in escrow representing full liquidated damages, and **Buyer** and **Seller** will be relieved of all further rights and obligations hereunder, it being agreed by the parties that such damages would be difficult to ascertain and calculate and that such sum constitutes reasonably liquidated damages under the circumstances. **Seller** acknowledges that the limitation of the liquidated damages remedy against **Buyer** and the full remedies against **Seller** are a material inducement for **Buyer** to enter into this Contract and without such remedies, **Buyer** would not enter into this Contract.*

7. The following language is added to paragraph 17 of the Contract:

***Attorney's fees and Waiver of Jury Trial:** In the event of any dispute arising under this Contract, whether or not a lawsuit, mediation, or other proceeding is*

filed, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs. The parties waive trial by jury in respect of any dispute and any action on dispute. This waiver is knowingly, willingly, and voluntarily made by both parties, and both parties hereby represent that no representations of fact or opinion have been made by any person or entity to induce this waiver of trial by jury or to in any way modify or nullify its effect. This provision is a material inducement for the parties entering into this Contract.

8. The following language is added to paragraph 21 of the Contract:

(CHECK ONLY ONE OF THE FOLLOWING)

- (1) ☐ _____ (**Seller's Broker**) will be compensated by **Seller** pursuant to the terms of a listing agent agreement between **Seller** and **Seller's Broker**. Adams Homes Realty, Inc. (**Buyer's Broker**) is acting as buying agent in the above referenced transaction and is entitled to a buying agent's commission of _____ percent (**Buyer's Agent Commission** negotiated between **Buyer's broker** and **Seller's Broker**) of the Purchase Price. Adams Homes Realty, Inc. hereby assigns the Buyer's Agent Commission to **Buyer** and instructs the Closing Agent to credit the commission to **Buyer** on the closing statement.
- (2) ☐ **Seller** represents and warrants that **Seller** has not engaged or contracted with any person or entity to serve or act as a broker, agent, finder, or similar commissions or fees associated with the sale and purchase of the Property, and that no commissions or fees are or shall be due in respect of the transaction contemplated by this Contract. If **Seller** is in breach of this section, **Seller** shall be solely responsible for all commissions and fees and shall hold Buyer harmless from any such fees, including attorney's fees relating to the enforcement of this section.

9. The following language is added to paragraph 23 of the Contract:

- (1) ☒ Within five (5) days of Contract execution, **Seller** shall provide **Buyer** with any surveys and other due diligence materials in its possession.
- (2) ☐ Homeowners' Association ("HOA") Disclosure Attached. **Buyer's** obligation under this Contract is contingent upon HOA's approval of plans **Buyer** intends to build on Property.
- (3) ☐ **Seller** does not yet own the Property, but has a contract to purchase the Property. If **Seller** is unable to acquire title to the property within thirty (30) days, **Seller's** obligations hereunder shall be null and void and **Buyer** shall be entitled to receive a refund of all deposit monies paid hereunder.
- (4) Representation: **Seller** acknowledges that the law firm of Emmanuel, Sheppard & Condon, P.A. is representing solely the **Buyer** in this transaction and acknowledges that in the event that **Seller** has agreed to pay any of the title insurance charge, **Seller** understands that such includes a fee payable to Emmanuel, Sheppard & Condon, P.A.

*incidental to the closing, and payment of such does not create an attorney/client relationship between **Seller** and Emmanuel, Sheppard & Condon, P.A.*

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year herein below written.

WITNESSES:

SELLER:

Print Name: _____

Print Name: _____

BY: _____

Print Name: _____

Title: _____

Date: _____

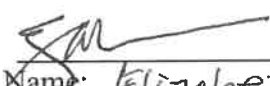
WITNESSES:

BUYER:

ADAMS HOMES OF NORTHWEST
FLORIDA, INC., a Florida corporation.

Print Name: _____

Print Name: _____

BY: 

Print Name: Elizabeth Porter

Title: Regional Manager

Date: _____

X: 

X: _____